

Calendar line 10 & 11**Case Name:** *Linda Johnson et al v. Hanford Hotels, Inc.***Case No.:** 25CV477676

Plaintiff's Application to Seal Portions of Moving Papers in Support of Petition for Approval of Minor's Compromise

PROCEDURAL BACKGROUND

This wrongful death action arises from the death of Terril Wade Johnson, Sr., who died on May 22, 2025, from severe scalding burns sustained in a hotel shower at the Fairfield by Marriott Inn & Suites San Jose Airport. Plaintiffs filed the complaint on October 15, 2025. The Court granted mandatory trial preference under Code of Civil Procedure section 36(a) on January 23, 2026, based on the advanced age and serious illness of plaintiff Linda Johnson, the decedent's surviving spouse. The parties reached a global settlement on May 14, 2026.

GOVERNING LAW

Unless confidentiality is required by law, court records are presumed to be open. Cal. Rules of Court, rule 2.550. The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. Cal. Rules of Court, rule 2.550, (Timothy W. v. Julie W. (2022) 85 Cal.App.5th 648)

An order sealing the record must specifically state the facts that support the findings and direct the sealing of only those documents and pages, or portions thereof, that contain the material that needs to be placed under seal. Cal. Rules of Court, rule 2.550. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. Cal. Rules of Court, rule 2.551.

The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178) ; Savaglio v. Wal-Mart Stores, Inc. (2007), 149 Cal. App. 4th 588. Under the California Constitution, the people have the right of access to information concerning the conduct of the people's business, and court records are presumptively open to public scrutiny. Cal Const, Art. I § 3.

A party seeking to seal documents must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them. H.B. Fuller Co. v. Doe, (2007) 151 Cal. App. 4th 879. A reasoned decision about sealing records cannot be made without identifying the specific information claimed to be entitled to such treatment, the nature of the harm threatened by disclosure, and countervailing considerations.

Individuals have a recognized privacy interest in their medical and mental health records that can constitute an overriding interest under rule 2.550(d). Overstock.com, Inc. v. Goldman

Sachs Group, Inc., (2014) 231 Cal. App. 4th 471. The court must balance the privacy interest against the public right of access, mandating sealing only where an overriding privacy interest would be prejudiced, the sealing is narrowly tailored, and no less restrictive means (such as redaction) suffice.

The protection of trade secrets and confidential financial information of third parties may constitute overriding interests supporting sealing. However, a settlement agreement containing a confidentiality clause may not be sealed merely because of the confidentiality provision; an overriding interest and specific showing of serious injury are required. (*Huffy Corp. v. Superior Court* (2003) 112 Cal.App.4th 97.)

ANALYSIS

Medical and Mental Health Records (Attachment 8)

The Court finds that Petitioner has established good cause to seal Attachment 8 to the Petition, which contains Terrilynn Johnson's confidential medical and mental health records.

Overriding Interest

Individuals have a recognized privacy interest in their medical and mental health records that constitutes an overriding interest under California Rules of Court, rule 2.550(d). Article I, section 1 of the California Constitution grounds the right to privacy in confidential medical and mental health affairs. The privacy interest in mental health treatment records is particularly strong given their intimate and sensitive nature.

Here, Attachment 8 contains records and information regarding minor Terrilynn Johnson's private medical and mental health treatment arising from the traumatic death of her grandfather. Terrilynn is a minor, and her mental health treatment addresses the psychological impact of her grandfather's death by scalding. This constitutes an overriding interest that overcomes the right of public access to the record.

Substantial Probability of Prejudice

Disclosure of Terrilynn Johnson's mental health records on the public record would embarrass and distress her by exposing intimate details of her mental health history. The Court finds a substantial probability that Terrilynn's privacy interest will be prejudiced if these records are not sealed, particularly given her status as a minor and the sensitive nature of mental health treatment following a family member's traumatic death.

Narrowly Tailored

The proposed sealing is narrowly tailored because it is limited solely to Attachment 8, which contains the medical and mental health records themselves. The Petition itself will remain public, as will the Court's order approving the compromise (subject to redaction of confidential settlement terms, discussed below). The sealing extends only to the specific documents containing the protected health information.

No Less Restrictive Means

The Court finds no less restrictive means exist to protect Terrilynn Johnson's mental health privacy. Redaction would be insufficient because the records are relevant only to the Court's evaluation of the Petition and serve no public function. The records are attached to demonstrate the nature and extent of Terrilynn's injuries and the reasonableness of the proposed allocation; they are not used to adjudicate a disputed claim or establish a legal precedent requiring public scrutiny.

The Court expressly finds that sealing Attachment 8 (Terrilynn Johnson's medical and mental health records) satisfies all requirements of California Rules of Court, rule 2.550(d).

Settlement Amount and Financial Terms

Petitioner seeks to seal the settlement amount and financial terms disclosed in forms MC-350, MC-351, and MC-355 based solely on the confidentiality provisions of the parties' Settlement Agreement. Petitioner expressly disclaims any independent advocacy for sealing this information and takes no position on whether the confidentiality terms satisfy the legal requirements for sealing.

The Court finds that Petitioner has not met the burden of establishing good cause to seal the settlement amount.

Party Stipulation Insufficient

A court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. A settlement agreement containing a confidentiality clause may not be sealed merely because of the confidentiality provision; an overriding interest and specific showing of serious injury are required..

No Specific Showing of Overriding Interest or Prejudice

Petitioner has not identified any overriding interest that would be prejudiced by disclosure of the settlement amount beyond the parties' contractual agreement to keep it confidential. No defendant has filed a declaration or memorandum articulating a specific business interest, competitive harm, or other cognizable injury that would result from public disclosure of the settlement amount.

The Court recognizes that Petitioner filed this motion to comply with contractual obligations and reserved the right to challenge the confidentiality provision. However, the burden of establishing good cause for sealing rests on the party seeking the sealing order. A reasoned decision about sealing records cannot be made without identifying the specific information claimed to be entitled to protection, the nature of the harm threatened by disclosure, and countervailing considerations.

Public Interest in Settlement Amounts

Court records concerning settlements in wrongful death cases arising from injuries at public accommodations implicate a strong public interest. The public has a right of access to information concerning the conduct of the people's business, including judicial proceedings and court-approved settlements. Cal Const, Art. I § 3. The settlement amount in a court-approved minor's compromise is a material fact relevant to the Court's exercise of its authority to approve or reject the settlement as fair and reasonable.

The burden rests on the party seeking to deny public access to court records to establish compelling reasons why and to what extent the records should be made private. *Copley Press v. Superior Court*, (1988) 63 Cal. App. 4th 367. Here, no party has carried that burden with respect to the settlement amount.

Temporary Sealing Pending Further Showing

Because no defendant has opposed this motion or submitted evidence supporting sealing of the settlement amount, and because Petitioner expressly declined to advocate for sealing, the Court has received no evidentiary basis on which to make the required findings under rule 2.550(d) as to the settlement amount.

The Court will grant the motion to seal the settlement amount on a temporary basis only, conditioned upon defendants filing, within 7 days of the date of this order, a declaration and memorandum establishing with specificity: (a) the overriding interest that would be prejudiced by disclosure; (b) the substantial probability that the interest will be prejudiced absent sealing; (c) why the proposed sealing is narrowly tailored; and (d) why no less restrictive means exist to achieve the overriding interest.

If defendants fail to file such showing within 7 days, the settlement amount disclosed in forms MC-350, MC-351, and MC-355 shall be unsealed and made part of the public record. If defendants timely file such showing, the Court will set a further hearing to determine whether permanent sealing is warranted.

Plaintiff to prepare the final proposed order, accompanied by the necessary EFS-020 within 7 days of the hearing.